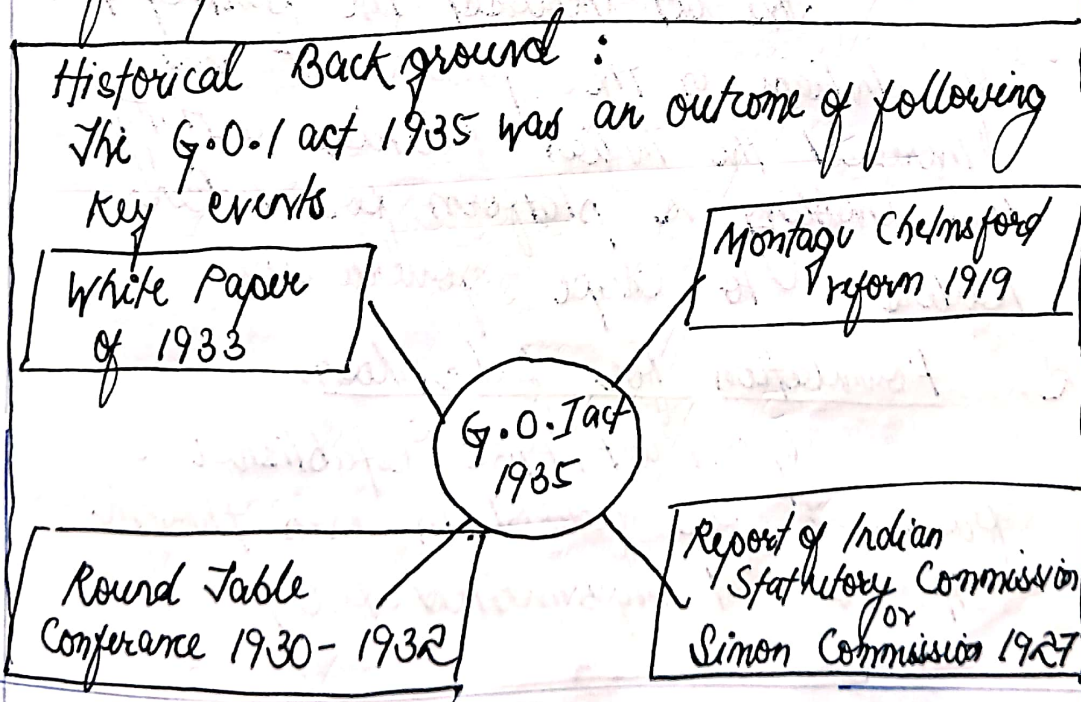


Q. Discuss how the Government of India act, 1935 laid the constitutional foundation of the modern Indian state. Which key features of this act were later retained in Indian Constitution?

38 Marks

The growing Nationalist movement and demand for complete independence led to the need for significant constitutional reform. The Government of India (G.O.I) act, 1935 marked a significant milestone in Indian history by establishing the groundwork for several aspects of Indian current governance and administrative structure by introducing significant reforms and paving the way towards 'Indian Self Government'.



Provisions of G.O.I act, 1935

1. All India Federation (Not Implemented)
2. Provincial Autonomy
3. Dyarchy at Centre (Not Implemented)
4. Bicameralism
5. Division of Powers
6. Establishment of Federal Court
7. Expansion of Franchise
8. Safeguards of British Interest

Following listed are the Impacts of G.O.I act 1935 :

1. Shift towards Representative Government

This act increased the participation of Indians in the government and increased the Indian Political activity thus enabling a platform for Indian leaders to shape governance

2. Foundation for federalism :

G.O.I act, 1935 established a framework for federalism even though it was not implemented fully

3 Provincial Reform

- a. Dyarchy was abolished at provinces or provincial level thereby providing greater autonomy.
- b. Bicameral legislature was adopted in six provinces viz. Assam, Bengal, Bihar, Bombay, Madras & United Provinces.
- c. Direct elections took place in provincial assemblies marking step towards self governance.
- d. Minorities were included in electorates thereby expansion of (suffrage) franchise took place.

4. Federal Reforms

a. Division of Legislative Subjects

The act proposed Federal, Provincial and Concurrent legislative lists. Subjects which were not in the list lied with the Governor General.

- b. Dyarchy was introduced at centre but was not implemented since the All India Federation never came into existence.
- c. Direct Election took place for first time and franchise was extended to minorities.

5. Institutional Developments

- a. A Federal court was established in 1937 at Delhi to resolve dispute betⁿ central government and provinces which later evolved as Supreme Court of India
- b. Reserve Bank of India was established in 1935 to regulate monetary related decisions.
- c. Creation of Provincial Public service commission and Joint Public service commission took place
- d. Council of India was abolished

6. Foundation of Future Constitution:

The G.O.I act 1935 is also known as 'Blueprint of Indian constitution' as our modern day Indian constitution has many provisions from it which acted as core foundations. It was the longest and most comprehensive constitutional act enacted by the Britishers for India.

P.T.O

Features of G.O.1 act, 1935 which are retained by Indian ~~Govt~~ Constitution

